

Order to Show Cause

The court on its own motion schedules this matter for an order to show cause hearing regarding settlement and/or dismissal on **October 27, 2026 at 9:00 a.m. in Department 32**. The parties are reminded that any requested dismissal of class actions must meet the requirements of California Rules of Court, rule 3.770.

10. S-CV-0055953 Safe Nation Found. v. Wildlife Heritage Found.

The demurrer to the second amended complaint is continued to **October 6, 2026 at 8:30 a.m. in Department 32** to be heard together with another motion filed in this action. No further briefing is permitted.

11. S-CV-0056073 Berg, Jill Elaine v. Berg, Brendon

Motion for Leave to File a Second Amended Complaint

Plaintiffs' unopposed motion for leave to file a second amended complaint is granted. (Coe Civ. Proc., § 473, subd. (a).) Plaintiffs shall file and serve their second amended complaint by September 4, 2026.

12. S-CV-0056213 Mora, Michael F v. Cavanaugh, Shannon G

Cross-defendant is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Demurrer to the Cross-Complaint ("XC")

Cross-defendant demurs to the second cause of action of the cross-complaint for slander of title contending it fails to allege facts sufficient to state a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) Cross-complainants oppose the demurrer.

Cross-defendant's request for judicial notice is granted.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Cross-defendant contends the XC alleges the parties entered into a Right of First Refusal (“ROFR”) on February 1, 2024 which granted him a property right in the subject property. Cross-defendant argues that therefore, recordation of the ROFR cannot be said to be without justification or with malice, a required element of a slander of title claim. While cross-defendant acknowledges the XC also alleges the ROFR was unsupported by consideration, cross-defendant asks this court to overlook those allegations because they conflict with the acknowledgment of consideration in the ROFR document itself. Cross-defendant asks the court to effectively make a determination about the validity and enforceability of the ROFR at the pleading stage. The court declines to do so at the pleading stage, as this type of argument is best suited for an evidentiary motion rather than by way of demurrer. Cross-defendant further argues that recordation of the ROFR does nothing to cast doubt of cross-complainant’s ownership of the real property because the language confirmed cross-complainant’s ownership of the real property. This argument ignores the reality that a ROFR would set a floor for asking price, which would cast doubt of cross-complainant’s ability to sell the real property. In sum, a careful review of the XC reveals it sufficiently alleges all elements for a slander of title claim.

Based on the foregoing, the demurrer is overruled. Cross-defendant shall file and serve an answer by September 4, 2026.

13. S-CV-0057262 Barker, Gregory v. Barnes, Mason

Defendants’ demurrer to complaint is continued to **September 15, 2026, at 8:30 a.m. in Department 32.**

14. S-CV-0058373 Arbaugh, Matthew v. Kennedy, Wayne

The order to show cause regarding preliminary injunction is continued to be heard on **September 8, 2026 at 8:30 a.m. in Department 32.** The court apologizes to the parties for any inconvenience. The temporary restraining order issued on August 5, 2026 shall continue until the court rules on the preliminary injunction.
